

Tata AIA Life Fortune Guarantee Pension (UIN: 110N161V13)

Non-linked, Non-participating Annuity Plan (Individual)

2. PART B

Tata AIA Life Insurance Fortune Guarantee Pension is a non-linked, non-participating, annuity plan (Individual).

2.1. Basic Definitions

- 1) Age means age as on the last birthday; i.e. the age of the Annuitant in completed years as on Date of Commencement of Policy and is as shown in the Policy Schedule.
- 2) Appointee means the person appointed by You and named in the Policy Schedule, to receive the benefits payable under the Policy until Your nominee attains the age of majority. This is applicable only where the nominee is a minor.
- 3) Annuitant means the Primary Annuitant or Secondary Annuitant under the Policy and is shown in the Policy Schedule.
- 4) Annuity Amount shall be the amount of annuity payable to the Annuitant, i.e., base annuity plus Annuity Booster, as per the Frequency of Annuity Payment chosen by the Annuitant at the proposal stage and is as shown in the Policy Schedule. As per the Frequency chosen, the Annuity Amount shall be payable—

Frequency	Annuity Instalment (per frequency)
Annually in arrears	Yearly Annuity
Half-yearly in arrears	98% of Yearly Annuity $\times \frac{1}{2}$
Quarterly in arrears	97% of Yearly Annuity $\times \frac{1}{4}$
Monthly in arrears	96% of Yearly Annuity $\times \frac{1}{12}$
Annually in advance (except for Option 1)	93% of Yearly Annuity

- 5) Annuity Booster is an additional annuity benefit payout applicable under a non-single pay annuity option to reward persisting policyholders over and above the base annuity amount. The Annuity Booster shall be based upon the number of premiums paid (in completed years). The final total annuity payment shall comprise of base annuity plus applicable annuity booster.
- 6) Assignee is the person to whom the rights and benefits under the Policy are transferred by way of an Assignment.
- 7) Assignment is the process of transferring the rights and benefits under the Policy to an "Assignee" in accordance with the provisions of Section 38 of Insurance Act, 1938 as amended from time to time.

- 8) Beneficiary/Claimant means the person entitled to receive the Policy benefits and includes the Policyholder, the nominee, the assignee, the legal heir, the legal representative(s) or the holder(s) of succession certificate as the case may be.
- 9) Date of Inception / Commencement of policy is the date as mentioned in the Policy Schedule.
- 10) Deferred Life Annuity means an option where the Annuity Amount shall accrue upon expiry of the Deferral Period and shall be payable as per the Frequency of Annuity Payment chosen by You.
- 11) Deferral Period is the period measured in years from the Date of Commencement of the Policy, during which no Annuity Amount is payable and is chosen at the inception of the Policy under Options 3 and 4. The Deferral Period chosen can be:
 - a) Single Pay: Between 1 to 10 years.
 - b) Regular Pay: Equal to Premium Payment Term.
 - c) Limited Pay: Between (Premium Payment Term + 1) to (Premium Payment Term + 5 years);
- 12) Extra Premium means an additional amount charged by Us, as per Our Underwriting Policy (if any), which is determined on the basis of disclosures made by You in the Proposal Form or any other information received by Us including medical examination report of the Annuitant;
- 13) Grace Period for other than single premium policies means the time granted by the insurer from the due date of payment of premium, without any penalty or late fee, during which time the policy is considered to be in-force with the risk cover without any interruption, as per the terms & conditions of the policy. The grace period for payment of the premium for all types of life insurance policies shall be fifteen days, where the policyholder pays the premium on a monthly basis and 30 days in all other cases.
- 14) Guaranteed Additions means the additions which are guaranteed and payable in accordance with Clause 3.1 of Part C, under Option 3 or 4 (as chosen).
- 15) IRDAI means the Insurance Regulatory and Development Authority of India.
- 16) Nominee means the person(s) named in the Policy Schedule who has been nominated by the Annuitant in accordance with Section 39 of the Insurance Act, 1938 as amended from time to time to receive benefits in respect of this Policy.
- 17) Policy means the contract of annuity entered into between You and Us as evidenced by this document, the Proposal Form, the Policy Schedule and any additional information/document(s) provided to Us in respect of the Proposal Form along

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with any written instructions from You subject to Our acceptance of the same and any endorsement issued by Us.

- 18) Policy Anniversary refers to the annual anniversary of the Date of Commencement of Policy.
- 19) Policy Schedule means the Policy schedule and any endorsements attached to and forming part of the Policy and if any updated Schedule is issued, then, the Schedule latest in time.
- 20) Premium means the amount specified in the Policy Schedule, payable by You/Annuitant, to secure the benefits under the Policy, excluding applicable tax, cesses or levies, if any.
- 21) Purchase Price means total of all the Premiums payable, excluding Extra Premium, any rider premium and taxes, cesses or levies, if any.
- 22) Primary Annuitant refers to the primary person entitled to receive the Annuity payment.
- 23) Proposal Form means the form filled in and completed by You for the purpose of obtaining insurance coverage under the Policy.
- 24) Reduced Paid-up means a Policy which has acquired Surrender Value, if subsequent Premiums remain unpaid at the end of Grace Period, the Policy will be converted into a Reduced Paid-up Policy by default.
- 25) Revival Period means the period of five consecutive complete years from the date of the first unpaid Premium.
- 26) Secondary Annuitant refers to the person entitled to receive the annuity payment in the event of death of the Primary Annuitant under a Joint Life option, if applicable and can be the spouse / child / parent / parent-in-law or sibling of the Primary Annuitant or a person under any other relationship provided there is insurable interest between the Annuitants, as defined in the Underwriting Policy.
- 27) Single Premium shall be the premium payable under a single pay option chosen by the policyholder, excluding the taxes, rider premiums, underwriting extra premiums, if any.
- 28) Surrender means complete withdrawal or termination of the entire policy contract.
- 29) Surrender Value means an amount payable on Surrender of this Policy, which will be in accordance with Clause No. 4.2.1.
- 30) Total Premiums Paid means total of all the premiums paid under the base product, excluding any extra premium and taxes, if collected explicitly.
- 31) Underwriting Policy means our then prevailing Underwriting Policy as approved by Our board of directors.
- 32) "We", "Us", "Our" or "Company" refers to Tata AIA Life Insurance Company Limited.

33) Yearly Annuity means annuity paid in respect of annual frequency annually in arrears.

34) "You" or "Your" means the holder of this Policy.

Whenever the context requires, the masculine form shall apply to feminine and singular terms shall include the plural.

3. PART C

3.1. BENEFITS

Tata AIA Life Insurance Fortune Guarantee Pension is a non-linked, non-participating, annuity plan (Individual) for individuals, which provides for payment of regular annuity as per the frequency of payment chosen by the Annuitant.

We shall pay the Annuity Amount to the Annuitant as per the option chosen by You at the inception of the Policy. The annuity option once chosen by You cannot be changed. The Options 1, 2, 3 and 4 are available in case of both single life and joint life basis. In case of joint life, the Primary Annuitant will be the primary person entitled to receive the Annuity Amount. After the death of the Primary Annuitant, the Secondary Annuitant, if applicable, will be entitled to receive the Annuity Amount. In case of Joint Life, the death benefit shall be payable on later of the deaths of the two Annuitants.

Under all non-single pay options, annuity payment / payout referred hereafter shall mean to comprise of base annuity plus applicable annuity booster.

3.1.1. Option 1: Immediate Life Annuity

Under this Option, the payment of Annuity Amount shall commence immediately as per the chosen Frequency of Annuity Payment.

A. Survival Benefit

i. Single Life –

Annuity Amount shall be paid to the Annuitant as long as the Annuitant is alive. The payment of Annuity Amount will cease on death of the Annuitant.

ii. Joint Life –

Annuity Amount shall be paid to the Annuitant as long as one of the Annuitants is alive. The payment of Annuity Amount will cease on later of the deaths of the two Annuitants.

No benefit for death, maturity or surrender shall be payable under this Option.

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3.1.2. Option 2: Immediate Life Annuity with Return of Purchase Price (Point of Sale Product Variant available with Single Life)

Under this Option, the payment of Annuity Amount shall commence immediately as per the chosen Frequency of Annuity Payment.

A. Survival Benefit

- i. Single Life –
Annuity Amount shall be paid to the Annuitant as long as the Annuitant is alive. The payment of Annuity Amount shall cease upon death of the Annuitant.
- ii. Joint Life –
Annuity Amount shall be paid to the Annuitant as long as one of the Annuitants is alive. The payment of Annuity Amount will cease on later of the deaths of the two Annuitants.

B. Death Benefit (Return of Purchase Price)

- i. Single Life –
Death benefit equal to the Total Premiums Paid shall be payable as a lump sum to Claimant, on the death of the Annuitant.
- ii. Joint Life –
Death benefit equal to the Total Premiums Paid shall be payable as a lump sum to Claimant, on the later of the deaths of the two Annuitants.

No maturity benefit shall be payable under this Option.

3.1.3. Option 3: Deferred Life Annuity (GA-I) with Return of Purchase Price

A. Survival Benefit

- i. Single Life –
After expiry of Deferment Period, Annuity Amount shall be paid to the Annuitant as long as the Annuitant is alive. The payment of Annuity Amount shall cease on death of the Annuitant.
- ii. Joint Life –
After expiry of Deferment Period, Annuity Amount shall be paid to the Annuitant as long as one of the Annuitants is alive. The payment of Annuity Amount will cease on later of the deaths of the two Annuitants.

B. Death Benefit (Return of Purchase Price)

- i. In case of death during the Deferment Period, the Death Benefit payable to the Claimant shall be the higher of:
 1. *Total Premiums Paid (excluding loading for Modal Premiums, if any) up to the*

date of death + Accrued Guaranteed Additions; or

2. *105% of Total Premiums Paid (excluding loading for Modal Premiums, if any) up to the date of death*
- ii. In case of death after the Deferment Period, the Death Benefit payable to the Claimant shall be:
Total Premiums Paid (excluding loading for Modal Premiums, if any) up to date of death + Max (Accrued Guaranteed Additions – Total Annuity Amount paid till date of death, 0)

Where,

Guaranteed Additions accrue at the rate of '1/12th of the Yearly Annuity' during the Deferment Period, at the end of each completed month after the Date of Commencement of Policy, subject to the payment of all due Premiums and forms a part of the Death Benefit. Guaranteed Additions shall cease to accrue if the Policy is lapsed or is converted into a Reduced Paid-up Policy.

No maturity benefit shall be payable under this Option.

3.1.4. Option 4: Deferred Life Annuity (GA-II) with Return of Purchase Price

A. Survival Benefit

- i. Single Life –
After expiry of Deferment Period, Annuity Amount shall be paid to the Annuitant as long as the Annuitant is alive. The payment of Annuity Amount shall cease on death of the Annuitant.
- ii. Joint Life –
After expiry of Deferment Period, Annuity Amount shall be paid to the Annuitant as long as one of the Annuitants is alive. The payment of Annuity Amount will cease on later of the deaths of the two Annuitants.

B. Death Benefit (Return of Purchase Price)

- i. In case of death during the Deferment Period, the Death Benefit payable to the Claimant shall be the higher of:
 1. *Total Premiums Paid (excluding loading for Modal Premiums, if any) up to the date of death + Accrued Guaranteed Additions; or*
 2. *105% of Total Premiums Paid (excluding loading for Modal Premiums, if any) up to the date of death*

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- ii. In case of death after the Deferment Period, the Death Benefit payable to the Claimant shall be:
- Total Premiums Paid (excluding loading for Modal Premiums, if any) up to date of death + Max (Accrued Guaranteed Additions – Total Annuity Amount paid till date of death, 0)*

Where,

Guaranteed Additions accrue at the rate of '1/12th of 6% of the Total Premiums Paid (excluding loading for Modal Premiums, if any)' during the Deferment Period, at the end of each completed month after the Date of Commencement of Policy, subject to the payment of all due Premiums and forms a part of the Death Benefit. Guaranteed Additions shall cease to accrue if the Policy is lapsed or is converted into a Reduced Paid-up Policy.

No maturity benefit shall be payable under this Option.

3.2. PAYMENT OF BENEFITS

- The benefits under Policy shall be payable to the Claimant.
- The frequency chosen by You at the proposal stage for receiving the Annuity Amount can be changed at Policy Anniversary, except where the minimum annuity limit as prescribed by the IRDAI (Minimum Limits for Annuities and other Benefits) Regulations, 2015 cannot be complied.
- The Annuity Amount shall be paid as per the chosen payment Frequency of Annuity Payment -
 - a. from the Date of Inception, if You have chosen Option 1 or 2.
 - b. from the end of Deferment Period, if You have chosen Option 3 or 4.

Thus, the pay-out shall be made as below:

- In case of Frequency of Annuity Payment other than Annually in arrears, the Death Benefit shall be paid after deducting any Annuity Pay-outs made during the Policy Year in which the death has occurred.
- Payment of Death Benefit (If applicable as per the Option chosen):
 - a) Single Life – Death benefit (as applicable) shall be payable as a lump sum to Nominee, on the death of the Annuitant.

- b) Joint Life – Death benefit shall (as applicable) be payable as a lump sum to Nominee, on the later of the deaths of the two Annuitants.

3.3. PAYMENT OF PREMIUM

- You can pay Premium at any of Our offices or through our website www.tataaia.com or by any other means, as informed by Us. Any Premium paid by You will be deemed to have been received by Us only after the same has been realized and credited to Our bank account.
- Collection of advance Premium shall be allowed within the same financial year for the Premium due in that financial year. However, where the Premium due in one financial year is being collected in advance in earlier financial year, the Company may collect the same for a maximum period of three months in advance of the due date of the Premium.
- The Premium so collected in advance shall only be adjusted on the due date of the Premium.

3.4. CHANGE OF FREQUENCY OF PREMIUM PAYMENT

You may change the frequency of Annuity Amount payments by written request. Subject to Our minimum Premium requirements, Premiums may be paid on monthly, quarterly, half-yearly or annual mode at the Premium rates applicable on the Date of Commencement of Policy. Alteration in the frequency of Premium payment may lead to a change in the Premium.

The loading on Premium shall be applicable as below:

Mode	Modal Loading
Frequency	Annuity Amount Pay-out would start after
Annually in arrears	One year from the purchase/end of Deferment Period
Half-yearly in arrears	Six months from the purchase/end of Deferment Period
Quarterly in arrears	Three months from the purchase/end of Deferment Period
Monthly in arrears	One month from the purchase/end of Deferment Period
Annually in advance (except for Option 1)	Date of purchase/end of Deferment Period

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Single Premium	Multiply Annual Premium Rate by 1
Annual	Multiply Annual Premium Rate by 1
Half – Yearly	Multiply Annual Premium Rate by 0.51
Quarterly	Multiply Annual Premium Rate by 0.26
Monthly	Multiply Annual Premium Rate by 0.0883

3.5. DEFAULT IN PREMIUM PAYMENT

After payment of the first Premium (except in case of Single Premium Policy), failure to pay a subsequent Premium on or before its due date will constitute a default in Premium payment.

3.6. GRACE PERIOD

The Premium is due and payable by the due date specified in the Schedule. If the Premium is not paid by the due date, You/Annuitant may pay the same during the Grace Period without any interest. The Policy will remain in force during this period.

3.7. TOP-UP ANNUITY

You may apply for an increase in Annuity Amount any time after six months after the Date of Commencement of the Policy (base plan) by paying an additional Purchase Price/Premium as a Single Pay, provided the Policy is in-force and no due premiums are outstanding. The following terms and conditions shall apply:

- Any such Top-up shall be subject to the product criteria prevailing then, with respect to minimum & maximum Age at Entry and minimum & maximum Deferral Period (as applicable as per the Option chosen by the Policyholder). However, the minimum Annuity instalment limits shall not be applicable for this option.
- The named Annuitant(s) in the Top-Up must be same as that of the base Policy.
- The prevailing annuity rate for revised Purchase Price slab and attained Age of the Annuitant(s) shall be considered to arrive at the additional Purchase Price/Premium.
- You shall have the choice to match the timing of the Top-up Annuity with that of base annuity. For example: if You opt for 10-year deferral period and pay top-up after 2.5 years, then prevailing annuity rates for deferral period of 7 years and 8 years would be used to derive the annuity rate for 7.5 years.

- Each top-up tranche will be treated as independent in its own right.

Hence:

- Any Top-up tranche can be surrendered independent of the base Policy or other top-up tranche(s).
- Benefit payable on Death, Survival or Surrender would be calculated separately for the base Policy and Top-up tranche(s) and the total would be payable.
- If the base Policy is surrendered, all Top-up tranche(s) will also be surrendered at the same time.
- The Annuity Amount under the base Policy shall remain unchanged.

3.8. CHANGE IN ADDRESS OF ANNUITANT(S) OR NOMINEE(S)

In order to provide better services, We request You to intimate us in the event of any change in the address of the Annuitant(s) or the Nominee(s).

4. PART D

4.1. FREE LOOK PERIOD

You have a free look period of 30 days from the date of receipt of the policy document in case of Policy obtained through electronic mode or otherwise, to review the terms and conditions of the Policy and if You disagree to any of those terms or conditions, You have the option to return the Policy to the Us for cancellation by providing Us a written notice stating the reasons for Your objection, and be entitled to a refund of the Premiums paid (without interest) after deducting the stamp duty and medical examination costs (including taxes, cesses or levies) which have been incurred for issuing the Policy and any Annuity Amount already paid. Such notice must be signed and received directly by the Company within 30 days (as applicable) from the date of receipt of the policy document.

However, the following exceptions apply:

- If the Policy is purchased through proceeds from subscribers NPS funds as detailed under Clause 4.5 of Part D, the proceeds from cancellation in the free-look period shall only be transferred back to the Central Record Keeping Agency from where the money was received.
- if the policy has been purchased as QROPS as detailed under Clause 4.6 of Part D, the proceeds from cancellation shall only be

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transferred back to the fund house from where the money was received.

To know the applicable GSV and SSV Factors, please refer our website www.tataaia.com.

4.2. NON-FORFEITURE PROVISIONS

4.2.1. Surrender Benefit:

No Surrender Benefit shall be payable under Option 1.

If You have chosen Option 2, 3 or 4, Surrender Value shall be payable basis the Premium Payment Mode as defined below.

Premium Payment Mode	Surrender Value payable
Single Pay	At any time after Date of Commencement of Policy
Regular/Limited Pay with PPT<5	Payable immediately provided at least 1 full year's premium has been paid
Regular / Limited Pay with PPT>=5	Payable after completion of first policy year, provided at least 1 full years' Premium has been paid

4.2.1.1. Surrender Value:

- I. Option 2
Special Surrender Value shall be payable as below:

Special Surrender Value =
 $F2 \text{ factor} \times (\text{Yearly Annuity} \times \text{RPU Factor})$
+ $F1 \text{ factor} \times \text{Total Premiums Paid}$
(excluding loading for Modal Premiums)

The maximum Special Surrender Value shall not exceed the amount of Death Benefit payable under Option 2.

- II. Option 3 or 4 (As chosen by the Policyholder)
The Surrender Value payable is higher of the Guaranteed Surrender Value or Special Surrender Value.

Guaranteed Surrender Value shall be defined as below:

$\text{GSV} = \text{GSV Factor} \times \text{Total Premiums Paid}$
(excluding loading for modal premiums)

Special Surrender Value (SSV) shall be determined by the Company from time-to-time basis changing economic scenario. The Company may revise SSV, based on the then prevailing market conditions. Any change in the methodology/formula for calculating the SSV shall be subject to IRDAI approval.

4.2.1.2. Payment of Surrender Benefit Post Deferment Period

In case of Frequency of Annuity Payment other than annually in arrears, the Surrender Benefit shall be paid after deducting any Annuity pay-outs made during the Policy Year.

4.2.2. LAPSATION OF POLICY

If the due Premium is not paid within the Grace Period and if at least 1 (one) full years' Premiums has not been paid (except in case of Single Pay Policy), the Policy will lapse from the due date of first unpaid Premium and no benefits will be payable.

4.3. REDUCED PAID-UP

Provided the Policy has acquired Surrender Value, if subsequent Premium remain unpaid at the end of Grace Period, the Policy (except a Single Premium Policy) will be converted into a Reduced Paid-up Policy by default.

Reduced Paid-up policy is a default non-forfeiture benefit. Reduced Paid-Up Policy, shall continue as Reduced Paid-up Policy unless revived within Revival Period by payment of all due Premium together with interest as mentioned in Clause 4.4 ("Revival") of Part D.

"Reduced Paid-up (RPU) Factor" shall be a ratio calculated as the total period for which Premiums have already been paid divided by the maximum period for which Premiums were originally payable.

In case of Reduced Paid-up Policy, the benefit shall be payable as under:

- a. Death Benefit
Death Benefit (As per the Option chosen and mentioned in the Part C) shall be payable.
- b. Survival Benefit:
- Option 1 and Option 2: Not applicable.
 - Options 3 and 4: The RPU Survival Benefit shall be equal to the Yearly Base Annuity multiplied by RPU Factor plus applicable Annuity Boosters as defined under Part C.
- c. Surrender Benefit:
This benefit is same as per Clause 4.2.1 of Part D.

4.4. REVIVAL

If there is default in Premium Payment beyond the Grace Period and subject to the Policy not having been surrendered, it may be revived in accordance with Underwriting Policy within Revival Period but before the end of Deferment Period, subject to: (i) Your written application for revival; (ii) production of Insured's current health certificate and other evidence of insurability; and (iii) payment of all overdue Premiums with interest.

The evidence of insurability and any medical requirements or health declarations requested at the time of revival will be in line with the Underwriting Policy.

The applicable interest rate for revival is determined using the SBI (State Bank of India) domestic term deposit rate for tenure '1 year to less than 2 years', plus 2%. Any alteration in the formula will be subject to prior approval of IRDAI. The interest rate applicable is reviewed every six months and gets updated as per the given formula. The simple interest rate applicable as on 1st October 2025, is 8.40% p.a. [i.e. SBI interest rate of 6.40% (which rate may be revised from time to time) + 2%].

Upon revival, the benefits of the Policy shall be restored with effect from the date of revival. Any Guaranteed Additions not accrued on account of the Policy being in lapse or Reduced Paid-up status shall accrue on the Date of Revival.

4.5. UTILIZATION OF RETURN OF PURCHASE OPTION FOR NPS SUBSCRIBERS

In case this annuity option is purchased as a default option by a Government sector NPS subscriber through funds accumulated in his/her NPS scheme, the utilization of Death Benefit shall be as per Pension Fund Regulatory and Development Authority (Exits and Withdrawals Under the National Pension System) Regulations, 2015, as amended from time to time.

Annuity can be taken by NPS subscriber subject to regulations, guidelines or other directions issued or prescribed by Pension Fund Regulatory and Development Authority (PFRDA), as applicable from time to time.

The Company offers an additional annuity of 1% of the annuity rate to such NPS subscribers at the time of purchasing annuity.

4.6. OPTION TO PURCHASE THIS PLAN AS QROPS (QUALIFYING RECOGNIZED OVERSEAS PENSION SCHEME)

This plan can be purchased as QROPS, through transfer of UK tax relieved assets subject to listing and terms and conditions prescribed by HMRC (Her Majesty Revenue & Customs) such as:

- i. Minimum entry age for annuity payment shall be 55 years (last birthday).
- ii. If the policy is cancelled during the Free Look Period, the proceeds from cancellation shall only be transferred back to the fund house from where the money was received.
- iii. Other terms and conditions of HMRC shall also apply as applicable from time to time.

4.7. LOAN (Available under Option 2, 3 or 4)

You may avail loan under the Policy at any time after 6 months from the Date of Commencement of Policy. Under a joint life Policy, the loan can be availed by the Primary Annuitant or the Secondary Annuitant in case of death of the Primary Annuitant. We may accept Your application for loan, if:

- the loan amount does not exceed 80% of surrender value
- the loan amount plus interest till end of Deferment Period (if any) would not exceed 90% of the Total Premiums Paid (excluding loading for Modal Premiums) assuming no further Premiums are payable, if any.
- the effective annual interest amount payable on loan immediately (if You have chosen Option 2) or post the end of Deferment Period (if You have chosen Option 3 or 4), does not exceed 50% of the annual Annuity Amount payable under the Policy assuming no further Premiums are payable, if any.

The due loan interest shall be recovered from the Annuity Amount payable under the Policy, as part of Survival Benefit. The loan interest will accrue as per the Frequency of Annuity Payment under the Policy and it will be due on the date of annuity. The loan outstanding shall be recovered from the claim proceeds under the Policy. However, the Annuitant has the flexibility to repay the loan principal at any time during the course of the Policy.

For in force and fully paid up policies, the policy will not be foreclosed if the outstanding loan amount including interest exceeds the surrender value. However, for other than in-force and fully paid up policies, if the outstanding loan amount including interest exceeds the surrender value, the policy will be foreclosed after giving intimation and reasonable opportunity to the policyholder to continue the policy.

Interest rate applicable to policy loan shall be calculated as the average annualized 10-year G-

Sec yield (over last 6 months; rounded up to the nearest 50 bps) + 2%. The interest rate on loans shall be verified and updated on the Company's systems every six months (on 1st April and 1st October every year) as per the given formula. The current interest rate for Loan from 1st October 2025 is 9.00% p.a. compounding annually. Any change in the loan interest rate formula shall be implemented post approval of IRDAI.

4.8. TERMINATION OF POLICY

This Policy will terminate upon the happening of any of the following events:

- On the date of payment of refund under a Freelook request.
- On the date of payment of the benefits in accordance with the provisions of this Policy (as applicable).
- In case of Option 1, 2, 3 or 4 (As applicable):
 - Single life – Upon the death of the Annuitant
 - Joint life – Upon later of the deaths of the two Annuitants
- On the date of payment of Surrender Benefit of this Policy.
- On the date when the loan amount with accrued interest exceeds the Surrender Value.
- On the expiry of the Revival Period, if the Lapsed Policy has not been revived.

5. PART E

Not Applicable for this Product.

6. PART F – GENERAL CONDITIONS

6.1. FRAUD, MISSTATEMENT OR SUPPRESSION

Any fraud, mis-statement or suppression of a material fact under the Policy shall be dealt in accordance with Section 45 of the Insurance Act, 1938 as amended from time to time. The simplified version of the provisions of Section 45 of the Insurance Act, 1938 is enclosed in Annexure 4 for reference.

SUICIDE EXCLUSIONS (Applicable only under Option 3 and 4 and during the Deferment Period)

In case of death due to suicide within 12 months:

- From the Date of Commencement of Risk under the Policy or from the date of revival of the Policy, as applicable, the Nominee or beneficiary of the Policyholder shall be entitled to at least 80% of the Total Premiums Paid till the date of death or the Surrender Value available as on the date of death, whichever is higher, provided the Policy is in force; or

- From the date of exercising the Top-Up Option, the Nominee or beneficiary of the Policyholder shall be entitled to 80% of the respective Top-Up Premiums paid (excluding any Extra Premium, any rider premium and taxes). The original Death Benefit (based on the Purchase Price/Premium chosen at the time of purchase) and any increased Death Benefit purchased by exercising the Top-Up Option subsequently but prior to 12 months from the date of death (due to suicide) shall remain payable in full.

In case of joint life Policy, the above clause is applicable if any of the two lives commits suicide within 12 months from the Date of Commencement of Risk under the Policy or the exercising of the Top-Up Option, as applicable.

6.2. MISSTATEMENT OF AGE

Declaration of the correct Age of the Annuitant is important for Our underwriting process and calculation of Purchase Price payable under the Policy. Any misstatement of Age in the Proposal Form shall be dealt with in accordance with Section 45 of the Insurance Act, 1938.

6.3. NOMINATION

Nomination allowed as per provisions of Section 39 of the Insurance Act, 1938 as amended from time to time. The simplified version of the provisions of Section 39 is enclosed in Annexure 3 for reference.

6.4. ASSIGNMENT

Assignment shall be as per Section 38 of the Insurance Act, 1938 as amended from time to time. The simplified version of the provisions of Section 38 is enclosed in 'Annexure 2' for reference.

6.5. LOSS OF POLICY DOCUMENT

If the Policy document is lost or destroyed, then at the request of the Policyholder, the Company will issue a duplicate Policy document duly endorsed to show that it is issued following the loss or destruction of the original Policy document. Upon the issuance of the duplicate Policy document, the original Policy document immediately and automatically ceases to have any validity. The Company will charge a fee of Rs. 250/- along with the applicable tax and surcharge/cess, for the issuance of a duplicate Policy document. These charges are subject to revision by the Company from time to time.

6.6. TAXES

The Purchase Price/Premium under the Policy is exclusive of applicable taxes, duties, surcharge, cesses or levies which will be entirely borne/ paid by the Policyholder, in addition to the payment of such Purchase Price/Premium. Tata AIA Life shall have the right to claim, deduct, adjust and recover the amount of any applicable tax or imposition, levied by any statutory or administrative body, from the benefits payable under the Policy.

The benefits payable under the Policy shall be governed in accordance with the prevailing provisions of Income Tax Act, 1961.

6.7. CLAIMS

Notice of Claim – All cases of death must be notified, within a period of 90 days, to us in writing. However, We may condone delay on merit for delayed claims where the reason for delay is proved to be for reasons beyond the control of the Claimant. In case of any delay on the part of the Company to process the claim within extant regulatory timeline, We shall pay interest as may be prescribed by the IRDAI from time to time.

Please note that all death claims will be payable to the Claimant. **Filing Proof of Claim** – Affirmative proof of loss and any appropriate forms as required by us must be completed and furnished to us, at the Claimant's expenses, within 90 days after the date the Insured event happens, unless specified otherwise. A list of primary claim documents listing the normally required documents is mentioned under Clause 6.9.1 of Part F. Submission of the listed documents, forms or other proof, however, shall not be construed as an admission of liabilities by the Company.

We reserve the right to require any additional proof and documents in support of the claim.

6.7.1. Claims Requirements

Death Claims Requirements

For processing the claim request under this Policy, We will require the following documents:

Type of Claim	Requirement
Death	a) Claim Forms - Part I: Application Form for Death Claim (Claimant's Statement) along with NEFT form

	- Part II: Physician's Statement - to be filled by last attending physician
	b) Death Certificate issued by a local government body like Municipal Corporation
	c) Medical Records (Admission Notes, Discharge/Death Summary, Indoor Case Papers, Test Reports etc) ¹
	d) Claimant's Photo ID with age proof & relationship with the Insured along with Address proof of the claimant and Cancelled cheque with name and account number printed or cancelled cheque with copy of Bank Passbook / Bank Statement
	If no nomination - Proof of legal title to the claim proceeds (e.g. legal succession paper)
If Death due to Accident or an unnatural death (to be submitted in addition to the above)	Copy of the First Information Report (FIR) or Panchanama/Police complaint/Inquest[#] Copy of Post-Mortem report (PMR)/Autopsy and Viscera report[#] Copy of the Final Police Investigation report (FPIR)/Charge sheet[#]

[#] Medical records shall be required if Life Assured was in hospital at the time of death or any time prior to the date of death. Please submit copies certified/attested by the issuing or competent authority. Original Seen Verified (OSV) by Branch Personnel will also be accepted.

6.7.2. Claims Intimation Process

Mentioned below is a list of various mediums through which Claimant can contact us.

- Online at www.tataaia.com
- Email - Customercare@tataaia.com
- Call our helpline number 1-860-266-9966 (local charges apply)
- Walk into any of the Company branch office
- Write directly to us on following address:

Tata AIA Life Insurance Company Limited
B - Wing, 9th Floor, I-Think Techno Campus,
Behind TCS, Pokhran Road No.2,

Close to Eastern Express Highway,
Thane (West) – 400 607, Maharashtra.

6.8. GOVERNING LAW AND JURISDICTION

The Policy will be governed by and enforced in accordance with the laws of India. The competent courts in India will have exclusive jurisdiction in all matters and causes arising out of the Policy.

7. PART G: POLICY SERVICING AND GRIEVANCE HANDLING MECHANISM

CONSUMER INFORMATION

POLICYHOLDER'S SERVICING

With regards to any query or issue related to the Policy, the Policyholder can contact the Company through the following service avenues:

- Contact your Tata AIA Life Agent / Distributor
- Call our helpline number 1-860-266-9966 (local charges apply)
- E-mail us at customercare@tataaia.com
- Visit the nearest Tata AIA Life branch or CAMS Service Center
- Log on to Online Customer Portal by visiting www.tataaia.com
- Write to us on the following address:
Tata AIA Life Insurance Company Limited
B- Wing, 9th Floor, I-Think Techno Campus,
Behind TCS, Pokhran Road No.2,
Close to Eastern Express Highway,
Thane (West) – 400 607, Maharashtra.

GRIEVANCE REDRESSAL PROCEDURE

1) Resolution of Grievances

Customers can register their grievances through Multiple Service Avenues:

- Call our helpline number 1-860-266-9966 (local charges apply)
- Email us at life.complaints@tataaia.com
- Login to online Policy account on www.tataaia.com
- Visit any of the nearest Tata AIA Life branches or CAMS Service Centers
- Contact your Tata AIA Life Agent / Distributor
- Write to us on the following address:
Customer Service Department
Tata AIA Life Insurance Company Limited
9th Floor, B - Wing, I-Think Techno Campus,
Behind TCS (Lodha), Pokhran Road No. 2,
Thane (West), Mumbai – 400 607.

- We shall acknowledge a customer's grievance immediately by providing the

customer with the name of the Grievance Redressal Executive who is responsible to handle the grievance.

- We shall provide the customer with an equitable resolution within 14 (fourteen) days of receipt of the grievance.
- In case customer wishes to contact us during the course of the assessment, they can contact us at any of the above-mentioned touch points.
- A complaint/grievance shall be considered as resolved where the Policyholder has not responded to the Company within 8 (eight) weeks of the Company's written response.

2) Escalation Mechanism

In case customers are not satisfied with the decision of the above offices, or has not received any response within the stipulated timelines, they may contact the following officials for resolution:

- Level of Escalation: Grievance Redressal Officer (GRO) - A senior member at corporate office of the Company shall be designated as the GRO.

For escalations, customers can email to head.customerservice@tataaia.com or write to –

Tata AIA Life Insurance Company Limited,
B-Wing, 9th Floor, I-Think Techno Campus,
Behind TCS, Pokhran Road No.2,
Close to Eastern Express Highway,
Thane (West) – 400 607, Maharashtra

We request our customers to follow the escalation mechanism in case of non-receipt of response or unsatisfactory response from the concerned persons mentioned above.

If You are not satisfied with the response or do not receive a response from us within 14 (fourteen) days, You may approach the Grievance Cell of the Insurance Regulatory and Development Authority of India (IRDAI) on the following contact details:

- IRDAI Grievance Call Centre (IGCC) TOLL FREE NO: 155255 or 18004254732 (Toll free).
- Email ID: complaints@irdai.gov.in
- You can also register Your complaint online at Bima Bharosa System - <https://bimabharosa.irdai.gov.in>
- Address for communication for complaints by fax/paper:
Consumer Affairs Department - Grievance Redressal Cell.

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Insurance Regulatory and Development
Authority of India
Sy.No.115/1, Financial District,
Nanakramguda,
Gachibowli, Hyderabad – 500 032.

- the complainant is not satisfied with the reply given to him by the Company.

ANNEXURE - 1

- Insurance Ombudsman:
Where the redressal provided by the Company is not satisfactory despite the escalation above, the customer may represent the case to the Ombudsman for Redressal of the grievance, if it pertains to the following:
 - Delay in settlement of claim
 - Partial or total rejection of claim
 - Dispute with regard to premium
 - Misrepresentation of Policy terms and conditions
 - Legal construction of the Policy in so far as dispute relates to claim
 - Grievance relating to Policy servicing
 - Issuance of Policy which is not in conformity with proposal form
 - Non- issuance of Your insurance document and
 - Any other matter resulting from the violation of provisions of the Insurance Act, 1938 or the regulations, circulars, guidelines or instructions issued by the IRDAI from time to time or the terms and conditions of the Policy contract, in so far as they relate to issues mentioned hereinabove.

Please refer to our website www.tataaia.com for further details in this regard.

The list of Ombudsman address is attached as Annexure 1.

The complaint should be made in writing duly signed by the complainant or through his legal heirs, nominee or assignee, and shall state clearly the name and address of the complainant, the name of the branch or office of the Company against whom the complaint is made, the facts giving rise to the complaint, supported by documents, the nature and extent of the loss caused to the complainant and the relief sought from the Insurance Ombudsman. As per provision 14(3) of the Insurance Ombudsman Rules, 2017, the complaint to the Ombudsman can be made, within a period of one year provided it is not simultaneously under any litigation:

- Only if the grievance has been rejected by the Grievance Redressal Machinery of the Company; or
- the complainant had not received any reply within a period of one month after the Company received his representation; or

NAMES OF OMBUDSMAN AND ADDRESSES OF OMBUDSMAN CENTRES		
Office of the Ombudsman	Details	Jurisdiction of Office (Union Territory, District)
AHMEDABAD	Office of the Insurance Ombudsman, Jeevan Prakash Building, 6th floor, Tilak Marg, Relief Road, Ahmedabad – 380 001. Tel.: 079 - 25501201/02 Email: oio.ahmedabad@cioins.co.in	Gujarat, Dadra & Nagar Haveli, Daman and Diu.
BENGALURU	Office of the Insurance Ombudsman, Jeevan Soudha Building, PID No. 57-27-N-19 Ground Floor, 19/19, 24th Main Road, JP Nagar, 1st Phase, Bengaluru – 560 078. Tel.: 080 - 26652048 / 26652049 Email: oio.bengaluru@cioins.co.in	Karnataka.
BHOPAL	Office of the Insurance Ombudsman, 1s floor, “Jeevan Shikha” 60-B, Hoshangabad Road, Opp. Gayatri Mandir, Arera Hills, Bhopal – 462011 Tel.: 0755 - 2769201 / 2769202 / 2769203 Email: oio.bhopal@cioins.co.in	Madhya Pradesh, Chattisgarh.
BHUBANESHWAR	Office of the Insurance Ombudsman, 62, Forest park, Bhubaneswar – 751 009.	Odisha

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NAMES OF OMBUDSMAN AND ADDRESSES OF OMBUDSMAN CENTRES		
Office of the Ombudsman	Details	Jurisdiction of Office (Union Territory, District)
	Tel.: 0674 - 2596461 /2596455 /2596429/2596003 Email: oio.bhubaneswar@cioins.co.in	
CHANDIGARH	Office of the Insurance Ombudsman, Jeevan Deep Building SCO 20-27, Ground Floor Sector-17A Chandigarh – 160017 Tel.: 0172 - 2706468 Email: oio.chandigarh@cioins.co.in	Punjab, Haryana (excluding Gurugram, Faridabad, Sonapat and Bahadurgarh), Himachal Pradesh, Union Territories of Jammu & Kashmir, Ladakh & Chandigarh.
CHENNAI	Office of the Insurance Ombudsman, Fatima Akhtar Court, 4th Floor, 453, Anna Salai, Teynampet, CHENNAI – 600 018. Tel.: 044 - 24333668 / 24333678 Email: oio.chennai@cioins.co.in	Tamil Nadu, Puducherry Town and Karaikal (which are part of Puducherry).
DELHI	Office of the Insurance Ombudsman, 2/2 A, Universal Insurance Building, Asaf Ali Road, New Delhi – 110 002. Tel.: 011 - 46013992/23213504/23232481 Email: oio.delhi@cioins.co.in	Delhi & following Districts of Haryana - Gurugram, Faridabad, Sonapat & Bahadurgarh.
GUWAHATI	Office of the Insurance Ombudsman, Jeevan Nivesh, 5th Floor, Nr. Pan Bazar S.S.	Assam, Meghalaya, Manipur, Mizoram, Arunachal

NAMES OF OMBUDSMAN AND ADDRESSES OF OMBUDSMAN CENTRES		
Office of the Ombudsman	Details	Jurisdiction of Office (Union Territory, District)
	Road, Guwahati – 781001(ASSAM). Tel.: 0361 - 2632204/2602205/2631307 Email: oio.guwahati@cioins.co.in	Pradesh, Nagaland and Tripura.
HYDERABAD	Office of the Insurance Ombudsman, 6-2-46, 1st floor, "Moin Court", Lane Opp. Hyundai Showroom, A. C. Guards, Lakdi-Ka-Pool, Hyderabad - 500 004. Tel.: 040 - 23312122 / 23376991 / 23376599 / 23328709 / 23325325 Email: oio.hyderabad@cioins.co.in	Andhra Pradesh, Telangana, Yanam and part of Territory of Puducherry.
JAIPUR	Office of the Insurance Ombudsman, Jeevan Nidhi – II Bldg., Gr. Floor, Bhawani Singh Marg, Jaipur - 302 005. Tel.: 0141 – 2740363 Email: oio.jaipur@cioins.co.in	Rajasthan.
KOCHI	Office of the Insurance Ombudsman, 10 th Floor, Jeevan Prakash, LIC Building, Opp to Maharaja's College Ground, M.G. Road, Kochi – 682011 Tel.: 0484 - 2358759 Email: oio.ernakulam@cioins.co.in	Kerala, Lakshadweep, Mahe-a part of Puducherry.

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NAMES OF OMBUDSMAN AND ADDRESSES OF OMBUDSMAN CENTRES		
Office of the Ombudsman	Details	Jurisdiction of Office (Union Territory, District)
KOLKATA	Office of the Insurance Ombudsman, Hindustan Bldg. Annexe, 7th Floor, 4, C.R. Avenue, KOLKATA - 700 072. Tel.: 033 - 22124339 / 22124341 Email: io.kolkata@cioins.co.in	West Bengal, Sikkim, Andaman & Nicobar Islands.
LUCKNOW	Office of the Insurance Ombudsman, 6th Floor, Jeevan Bhawan, Phase-II, Nawal Kishore Road, Hazratganj, Lucknow - 226 001. Tel.: 0522 - 4002082/3500613 Email: io.lucknow@cioins.co.in	Districts of Uttar Pradesh: Lalitpur, Jhansi, Mahoba, Hamirpur, Banda, Chitrakoot, Allahabad, Mirzapur, Sonbhadra, Fatehpur, Pratapgarh, Jaunpur, Varanasi, Gazipur, Jalaun, Kanpur, Lucknow, Unnao, Sitapur, Lakhimpur, Bahraich, Barabanki, Raebareli, Sravasti, Gonda, Faizabad, Amethi, Kaushambi, Balrampur, Basti, Ambedkarnagar, Sultanpur, Maharajgang,

NAMES OF OMBUDSMAN AND ADDRESSES OF OMBUDSMAN CENTRES		
Office of the Ombudsman	Details	Jurisdiction of Office (Union Territory, District)
		Santkabir nagar, Azamgarh, Kushinagar, Gorkhpur, Deoria, Mau, Ghazipur, Chandauli, Ballia, Sidharathnagar.
MUMBAI	Office of the Insurance Ombudsman, 3rd Floor, Jeevan Seva Annexe, S. V. Road, Santacruz (W), Mumbai - 400 054. Tel.: 022 – 69038800/27/29/31/32/33 Email: io.mumbai@cioins.co.in	List of wards under Mumbai Metropolitan Region excluding wards in Mumbai – i.e M/E, M/W, N, S and T covered under Office of Insurance Ombudsman Thane and excluding areas of Navi Mumbai
NOIDA	Office of the Insurance Ombudsman, Bhagwan Sahai Palace 4th Floor, Main Road, Naya Bans, Sector 15, Distt: Gautam Buddh Nagar, U.P-201301. Tel.: 0120- 2514252 / 2514253 Email: io.noida@cioins.co.in	State of Uttaranchal and the following Districts of Uttar Pradesh: Agra, Aligarh, Bagpat, Bareilly, Bijnor, Budaun, Bulandshehar, Etah, Kanoor, Mainpuri, Mathura,

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NAMES OF OMBUDSMAN AND ADDRESSES OF OMBUDSMAN CENTRES		
Office of the Ombudsman	Details	Jurisdiction of Office (Union Territory, District)
		Meerut, Moradabad, Muzaffarnagar, Oraiyya, Pilibhit, Etawah, Farrukhabad, Firozbad, Gautam Buddh Nagar, Ghaziabad, Hardoi, Shahjahanpur, Hapur, Shamli, Rampur, Kashganj, Sambhal, Amroha, Hathras, Kanshiramgar, Saharanpur.
PATNA	2nd Floor, Lalit Bhawan, Bailey Road, Patna 800 001. Tel.: 0612-2547068 Email: oio.patna@cioins.co.in	Bihar, Jharkhand.
PUNE	Office of the Insurance Ombudsman, Jeevan Darshan Bldg., 3rd Floor, C.T.S. No.s. 195 to 198, N.C. Kelkar Road, Narayan Peth, Pune – 411 030. Tel.: 020-24471175 Email: oio.pune@cioins.co.in	State of Goa and State of Maharashtra excluding areas of Navi Mumbai, Thane district, Palghar District, Raigad district & Mumbai Metropolitan Region
THANE	Office of the Insurance Ombudsman,	Area of Navi Mumbai, Thane

NAMES OF OMBUDSMAN AND ADDRESSES OF OMBUDSMAN CENTRES		
Office of the Ombudsman	Details	Jurisdiction of Office (Union Territory, District)
	2nd Floor ,Jeevan Chintamani Building, Vasantnao Naik Mahamarg, Thane (West)- 400604 Tel.: 022-20812868/69 Email: oio.thane@cioins.co.in	District, Raigad District, Palghar District and wards of Mumbai, M/East, M/West, N, S and T."

For further information or latest updated list of Ombudsman Office addresses, kindly visit the IRDA of India website <http://www.policyholder.gov.in> - Ombudsman / List of Insurance Ombudsmen OR our website www.tataaia.com

ANNEXURE - 2 SECTION 38 - ASSIGNMENT AND TRANSFER OF INSURANCE POLICIES

Assignment or transfer of a policy should be in accordance with Section 38 of the Insurance Act, 1938 as amended by Insurance Laws (Amendment) Act, 2015. The extant provisions in this regard are as follows:

1. This policy may be transferred/assigned, wholly or in part, with or without consideration.
2. An Assignment may be effected in a policy by an endorsement upon the policy itself or by a separate instrument under notice to the Company.
3. The instrument of assignment should indicate the fact of transfer or assignment and the reasons for the assignment or transfer, antecedents of the assignee and terms on which assignment is made.
4. The assignment must be signed by the transferor or assignor or duly authorized agent and attested by at least one witness.
5. The transfer of assignment shall not be operative as against a Company until a notice in writing of the transfer or assignment and either the said endorsement or instrument itself or copy thereof certified to be correct by both transferor and transferee or their duly authorised agents have been delivered to the Company.
6. Fee to be paid for assignment or transfer can be specified by the Authority through Regulations.
7. On receipt of notice with fee, the Company should Grant a written acknowledgement of receipt of

- notice. Such notice shall be conclusive evidence against the insurer of duly receiving the notice.
8. If the Company maintains one or more places of business, such notices shall be delivered only at the place where the policy is being serviced.
 9. The Company may accept or decline to act upon any transfer or assignment or endorsement, if it has sufficient reasons to believe that it is
 - a. not bonafide or
 - b. not in the interest of the Policyholder or
 - c. not in public interest or
 - d. is for the purpose of trading of the insurance policy.
 10. Before refusing to act upon endorsement, the Company should record the reasons in writing and communicate the same in writing to Policyholder within 30 days from the date of Policyholder giving a notice of transfer or assignment.
 11. In case of refusal to act upon the endorsement by the Company, any person aggrieved by the refusal may prefer a claim to IRDAI within 30 days of receipt of the refusal letter from the Company.
 12. The priority of claims of persons interested in an insurance policy would depend on the date on which the notices of assignment or transfer is delivered to the Company; where there are more than one instruments of transfer or assignment, the priority will depend on dates of delivery of such notices. Any dispute in this regard as to priority should be referred to Authority.
 13. Every assignment or transfer shall be deemed to be absolute assignment or transfer and the assignee or transferee shall be deemed to be absolute assignee or transferee, except
 - a. where assignment or transfer is subject to terms and conditions of transfer or assignment OR
 - b. where the transfer or assignment is made upon condition that
 - i. the proceeds under the policy shall become payable to Policyholder or nominee(s) in the event of assignee or transferee dying before the Annuitant OR
 - ii. the Annuitant surviving the term of the policy Such conditional assignee will not be entitled to obtain a loan on policy or surrender the policy. This provision will prevail notwithstanding any law or custom having force of law which is contrary to the above position.
 14. In other cases, the Company shall, subject to terms and conditions of assignment, recognize the transferee or assignee named in the notice as the absolute transferee or assignee and such person
 - a. shall be subject to all liabilities and equities to which the transferor or assignor was subject to at the date of transfer or assignment and
 - b. may institute any proceedings in relation to the policy
 - c. obtain loan under the policy or surrender the policy without obtaining the consent of the transferor or assignor or making him a party to the proceedings
 15. Any rights and remedies of an assignee or transferee of a life insurance policy under an assignment or transfer effected before commencement of the Insurance Laws (Amendment) Act, 2015 shall not be affected by this section.
- [Disclaimer: This is not a comprehensive list of amendments of Insurance Laws (Amendment) Act, 2015 and only a simplified version prepared for general information. Policyholders are advised to refer to Insurance Laws (Amendment) Act, 2015 for complete and accurate details.]

ANNEXURE - 3

SECTION 39 - NOMINATION BY POLICYHOLDER

Nomination of a life insurance Policy is as below in accordance with Section 39 of the Insurance Act, 1938 as amended by Insurance Laws (Amendment) Act, 2015. The extant provisions in this regard are as follows:

1. The Policyholder of a life insurance on his own life may nominate a person or persons to whom money secured by the policy shall be paid in the event of his death.
2. Where the nominee is a minor, the Policyholder may appoint any person to receive the money secured by the policy in the event of Policyholder's death during the minority of the nominee. The manner of appointment to be laid down by the Company.
3. Nomination can be made at any time before the maturity of the policy.
4. Nomination may be incorporated in the text of the policy itself or may be endorsed on the policy communicated to the insurer and can be registered by the Company in the records relating to the policy.
5. Nomination can be cancelled or changed at any time before policy matures, by an endorsement or a further endorsement or a will as the case may be.
6. A notice in writing of Change or Cancellation of nomination must be delivered to the Company for the Company to be liable to such nominee. Otherwise, Company will not be liable if a bonafide payment is made to the person named in the text of the policy or in the registered records of the Company.

7. Fee to be paid to the Company for registering change or cancellation of a nomination can be specified by the Authority through Regulations.
8. On receipt of notice with fee, the Company should grant a written acknowledgement to the Policyholder of having registered a nomination or cancellation or change thereof.
9. A transfer or assignment made in accordance with Section 38 shall automatically cancel the nomination except in case of assignment to the Company or other transferee or assignee for purpose of loan or against security or its reassignment after repayment. In such case, the nomination will not get cancelled to the extent of Company's or transferee's or assignee's interest in the policy. The nomination will get revived on repayment of the loan.
10. The right of any creditor to be paid out of the proceeds of any policy of life insurance shall not be affected by the nomination.
11. In case of nomination by Policyholder whose life is insured, if the nominees die before the Policyholder, the proceeds are payable to Policyholder or his heirs or legal representatives or holder of succession certificate.
12. In case nominee(s) survive the person whose life is insured, the amount secured by the policy shall be paid to such survivor(s).
13. Where the Policyholder whose life is Annuitant nominates his
 - a. parents or
 - b. spouse or
 - c. children or
 - d. spouse and children
 - e. or any of them
 the nominees are beneficially entitled to the amount payable by the Company to the Policyholder unless it is proved that Policyholder could not have conferred such beneficial title on the nominee having regard to the nature of his title.
14. If nominee(s) die after the Policyholder but before his share of the amount secured under the policy is paid, the share of the expired nominee(s) shall be payable to the heirs or legal representative of the nominee or holder of succession certificate of such nominee(s).
15. The provisions of sub-section 7 and 8 (13 and 14 above) shall apply to all life insurance policies maturing for payment after the commencement of Insurance Laws (Amendment) Act, 2015.
16. If Policyholder dies after maturity but the proceeds and benefit of the policy has not been paid to him because of his death, his nominee(s) shall be entitled to the proceeds and benefit of the policy.

17. The provisions of Section 39 are not applicable to any life insurance policy to which Section 6 of Married Women's Property Act, 1874 applies or has at any time applied except where before or after Insurance Laws (Amendment) Act, 2015., a nomination is made in favour of spouse or children or spouse and children whether or not on the face of the policy it is mentioned that it is made under Section 39. Where nomination is intended to be made to spouse or children or spouse and children under Section 6 of MWP Act, it should be specifically mentioned on the policy. In such a case only, the provisions of Section 39 will not apply.

[Disclaimer: This is not a comprehensive list of amendments of Insurance Laws (Amendment) Act, 2015 and only a simplified version prepared for general information. Policyholders are advised to refer to Insurance Laws (Amendment) Act, 2015 for complete and accurate details.]

ANNEXURE - 4

SECTION 45 – POLICY SHALL NOT BE CALLED IN QUESTION ON THE GROUND OF MIS-STATEMENT AFTER THREE YEARS

Provisions regarding policy not being called into question in terms of Section 45 of the Insurance Act, 1938, as amended by Insurance Laws (Amendment) Act, 2015. are as follows:

1. No Policy of Life Insurance shall be called in question on any ground whatsoever after expiry of 3 yrs from
 - a. the date of issuance of policy or
 - b. the date of commencement of risk or
 - c. the date of revival of policy or
 - d. the date of rider to the policy
 whichever is later.
2. On the ground of fraud, a policy of Life Insurance may be called in question within 3 years from
 - a. the date of issuance of policy or
 - b. the date of commencement of risk or
 - c. the date of revival of policy or
 - d. the date of rider to the policy
 whichever is later.

For this, the Company should communicate in writing to the Annuitant or legal representative or nominee or assignees of insured, as applicable, mentioning the ground and materials on which such decision is based.

3. Fraud means any of the following acts committed by Annuitant or by his agent, with the intent to deceive the Company or to induce the Company to issue a life insurance policy:
 - a. The suggestion, as a fact of that which is not true and which the Annuitant does not believe to be true;

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- b. The active concealment of a fact by the Annuitant having knowledge or belief of the fact;
 - c. Any other act fitted to deceive; and
 - d. Any such act or omission as the law specifically declares to be fraudulent.
4. Mere silence is not fraud unless, depending on circumstances of the case, it is the duty of the Annuitant or his agent keeping silence to speak or silence is in itself equivalent to speak.
 5. No Company shall repudiate a life insurance Policy on the ground of Fraud, if the Annuitant / beneficiary can prove that the misstatement was true to the best of his knowledge and there was no deliberate intention to suppress the fact or that such misstatement of or suppression of material fact are within the knowledge of the Company. Onus of disproving is upon the Policyholder, if alive, or beneficiaries.
 6. Life insurance Policy can be called in question within 3 years on the ground that any statement of or suppression of a fact material to expectancy of life of the Annuitant was incorrectly made in the proposal or other document basis which policy was issued or revived or rider issued. For this, the Company should communicate in writing to the Annuitant or legal representative or nominee or assignees of insured, as applicable, mentioning the ground and materials on which decision to repudiate the policy of life insurance is based.
 7. In case repudiation is on ground of mis-statement and not on fraud, the premium collected on policy till the date of repudiation shall be paid to the Annuitant or legal representative or nominee or assignees of insured, within a period of 90 days from the date of repudiation.
 8. Fact shall not be considered material unless it has a direct bearing on the risk undertaken by the Company. The onus is on Company to show that if the Company had been aware of the said fact, no life insurance policy would have been issued to the insured.
 9. The Company can call for proof of age at any time if he is entitled to do so and no policy shall be deemed to be called in question merely because the terms of the policy are adjusted on subsequent proof of age of life insured. So, this Section will not be applicable for questioning age or adjustment based on proof of age submitted subsequently.

[Disclaimer: This is not a comprehensive list of amendments of Insurance Laws (Amendment) Act, 2015. and only a simplified version prepared for general information. Policyholders are advised to refer to Insurance Laws (Amendment) Act, 2015 for complete and accurate details.]